Suman Chadha vs Serious Fraud Insvestigation Office on 13 April, 2023

Author: Anup Jairam Bhambhani

Bench: Anup Jairam Bhambhani

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
\+ BAIL APPLN. 1741/2022 & CRL.M.A. 12063/2022
CRL.M.A. 14727/2022
SUMAN CHADHA
Through: Mr. Neeraj Kumar an
Bhasin, Advocates.
versus

SERIOUS FRAUD INSVESTIGATION OFFICE
Through: Mr. Srish Kumar Mis
Mehlawat, Mr. Alexa
Paikaday, Advocates
CORAM:
HON'BLE MR. JUSTICE ANUP JAIRAM BHAMBHANI
ORDER

% 13.04.2023 Mr. Neeraj Kumar, learned counsel appearing for the petitioner draws the attention of this court to order dated 21.03.2023 made in MA Nos. 2034/2022 and 1849/2021 in SLP (Crl.) No. 5191/2021 titled Satender Kumar Antil vs. Central Bureau of Investigation and Anr. wherein the Supreme Court has made certain observations in relation to non-compliance of the directions contained in its judgment passed in the same case, thereby deprecating the practice of mindless remand of persons to judicial custody, even where custody has not been sought by the prosecution.

2. Mr. Kumar's contention is that the petitioner is covered by the observations of the Supreme Court inasmuch as he was also remanded to custody merely upon appearing before the learned Special Judge in compliance of summons though the SFIO had not even asked for his remand. It is also re-iterated by Mr. Kumar that three co-accused namely Ms. Komal Chadha, Mr. Deepak Jha and Mr. Taranjeet Singh Bagga have already been admitted to bail vide orders dated 21.12.2022, 06.02.2023 and 17.02.2023 respectively of the Delhi High Court.

3. On the other hand however, a request is made for deferment on behalf of learned CGSC, Mr. Srish Kumar Mishra, learned counsel for the respondent, who is stated to be pre-occupied before the Supreme Court today.

4. In view of non-availability of learned CGSC, re-notify on 1st May 2023.

5. The matter be reflected in the 'supplementary list' for the said date.

ANUP JAIRAM BHAMBHANI, J APRIL 13, 2023/ak